

POD TOD TRANSFER

NAVIGATION

- Dashboard
- Settlement Path

SETTLEMENT

- Asset Ledger
- Liabilities
- Accounting
- Final Distribution
- Official Forms

RECORDS

- Discovery Assistant
- Document Vault
- Settlement Trail
- Follow-Ups

SUPPORT

- Help Center
- Settings

SYSTEM

- Profile
- Admin Console



pth13-smallestate

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Strategic Assessment

Secure & Notify
Death to Filing

Petition & Authority

Obtaining Powers
After Petition Filed

Asset Discovery

Inventory & Appraisal
After Letters Issued

Creditor Claims

Notice & Priority
After Notice Published

Asset Liquidation

Managed Transfer
After Inventory Approved

Strategic Assessment

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Final Distribution

Estate In Closing • After Claim Period



Preliminary Assessment

Current

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☐

Preliminary Asset & Liability Scan

NEXT STEP

Identify known bank accounts, real estate, and major debts. This data is critical for estimating estate value on the petition and determining requirements.

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Evaluate Small Estate Eligibility

OPTIONAL

Determine if total assets are under the state's small estate threshold. This may allow for a simplified Affidavit process, bypassing full probate.

Start Fast-Track

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Confirm Executor/Trustee Role

Review the Will or Trust to confirm your appointment and willingness to serve.

Profile Settings

☐

Secure the Property

Change locks, forward mail, and ensure the home is protected from theft or damage.

Upload Photos

☐

Identify Minor Beneficiaries

OPTIONAL

Review all heirs and identify any beneficiaries under age 18. Minors require special court protection through a guardian ad litem.

Protect Minors

☐

Evaluate Primary Residence Succession

OPTIONAL

If the estate consists primarily of a primary residence valued under \$100,000, you may qualify for the simplified Succession process (DE Form 100).

Check Eligibility

ExpectedEstate

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Immediate Actions

Current

Initial Property Protection

NEXT STEP

Ensure the decedent's residence is secured, mail is forwarded, and assets are protected from loss or damage.

Notify Social Security Administration

Report the death to stop benefit payments and prevent overpayment recovery.

Death Certificate Obtained

Upload Death Certificate

Cancel Credit Cards & Subscriptions

Stop recurring charges and prevent identity theft by closing accounts.

Manage Accounts

Conduct Genealogical Search

OPTIONAL

If heirs are unknown or missing, you must perform a formal search to identify all legal beneficiaries. This is required for your final distribu

Locate Will and Important Documents

Find the original Will, trust documents, insurance policies, and account statements.

Upload Will

Establish Estate Financial Account

Open a separate fiduciary account for estate income and expenses once legal authority is obtained.

Death Certificate Obtained

UPLOAD LETTERS (DE-150)

UPLOAD EIN

Upload Proof

Managed Payment of Immediate Bills

Prioritize current utilities, mortgage, and insurance to protect the value of estate assets.

Track Bills

Confirm U.S. Legal Representative

Decide if you will hire a U.S. probate attorney or appoint a local co-executor/agent to handle on-the-ground tasks.

Check Apostille Requirements

Determine if your country is part of the Hague Apostille Convention for notarizing documents.

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Court Filing

File Petition for Probate (DE-111)

Submit the probate petition to the Superior Court to open the estate case.

UPLOAD ORIGINAL WILL

Death Certificate Obtained

UPLOAD DE-111

UPLOAD DE-121

Start Petition

Publish Creditor Notice

Check Deadline

LOCKED

https://www.expectedestate.com/roadmap

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Probate Roadmap | ExpectedEstate

Publish notice in a local newspaper for 3 consecutive weeks to notify creditors.

 UPLOAD COURT CASE NUMBER

 UPLOAD DE-130

Upload Notice

☐ Mail Notice to Known Creditors LOCKED

Send formal notice to all known creditors (banks, credit cards, medical providers).

 UPLOAD DE-157

Notify Creditors

☐ Attend Probate Hearing LOCKED

Appear in court for the probate hearing (usually 60-90 days after filing).

 UPLOAD VALID ID

 UPLOAD DE-130

View Roadmap

☐ Establish Fiduciary Authority (DE-150) LOCKED

Obtain certified copies of the Letters—this document is your legal evidence of authority to manage estate assets.

 UPLOAD DE-150

☐ File Small Estate Affidavit OPTIONAL

For estates under threshold, use this shortcut to bypass court probate.

 UPLOAD DE-310

 Death Certificate Obtained



☐ File Spousal Property Petition (DE-221) OPTIONAL

Request court order to transfer property to surviving spouse without full probate.

 UPLOAD DE-221

 Death Certificate Obtained



Start Spousal Path

☐ Give Notice of Hearing (DE-120) OPTIONAL LOCKED

Notify all interested parties about the court hearing date for the Spousal Property Petition.

 UPLOAD DE-120

☐ Obtain Spousal Property Order (DE-226) OPTIONAL LOCKED

Receive signed court order confirming property ownership transfer to spouse. Record with county recorder if real estate is involved.

 UPLOAD DE-226

☐ Issue Certificate of Trust OPTIONAL

Formalize successor trustee authority for trust-held assets.

 UPLOAD TRUST AGREEMENT

☐ Obtain Business Operating Authority OPTIONAL

If the decedent owned a business, you may need a court order to continue operations and pay employees.

☐ File Petition for Guardian Ad Litem (DE-350) OPTIONAL LOCKED

Request court appointment of a guardian ad litem to represent minor beneficiaries' interests throughout probate.

 UPLOAD DE-350

 Death Certificate Obtained



Set Up Guardian

☐ Obtain Guardian Ad Litem Order (DE-351) OPTIONAL LOCKED

Receive court order appointing guardian ad litem. Provide guardian with all estate information.

 UPLOAD DE-351

Get Final Order



☐ File Petition to Determine Succession (DE-310) OPTIONAL

File petition with court to determine who inherits the primary residence without full probate.

UPLOAD DE-310

Death Certificate Obtained



UPLOAD PROPERTY DEED

Start Succession

☐ Give Notice of Hearing (DE-120) OPTIONAL LOCKED

Notify all interested parties of the hearing date for the succession petition.

UPLOAD DE-120

☐ Obtain Order Determining Succession (DE-315) OPTIONAL LOCKED

Receive court order determining property succession. Record order with county recorder.

UPLOAD DE-315

☐ Track Special Notice Requests (DE-154) OPTIONAL LOCKED

Maintain list of all parties who have requested special notice. You must serve them copies of ALL court filings.

UPLOAD DE-154

UPLOAD DE-130

Open Registry

☐ Serve All Special Notice Recipients OPTIONAL LOCKED

Each time you file a document with the court, serve copies by mail on all parties who requested special notice.

Service Tracker

☐ Request Bond Waiver from Heirs (DE-142) OPTIONAL LOCKED

Ask all heirs to sign waivers of bond requirement. Bond costs 0.5-1% of estate value annually.

UPLOAD DE-142

Avoid Bond Cost

☐ File Waiver of Bond (DE-142) OPTIONAL LOCKED

Submit signed waivers to court and request order waiving bond requirement.

UPLOAD DE-142

Open Workbook

☐ Obtain Order Waiving Bond (DE-143) OPTIONAL LOCKED

Verify that the court has officially waived the bond requirement, typically reflected in a separate Order (DE-143) or the Order for Probate

UPLOAD DE-143

UPLOAD DE-140

Open Workbook

☐ Respond to Objections (DE-115/116) OPTIONAL LOCKED

If someone files an objection to the petition or will, you must respond formally and prepare for contest hearing.

UPLOAD DE-115

UPLOAD DE-116

View Litigation

☐ Attend Will Contest Hearing OPTIONAL LOCKED

Appear in court for hearing on objection. Be prepared to present evidence supporting will validity.

Hearing Plan

☐ Resolve Will Contest OPTIONAL LOCKED

Obtain court ruling on objection. If will is upheld, proceed with probate. If invalidated, estate becomes intestate. Contested probate can ex timeline by 6-24 months.

View Outcome



 UPLOAD MISCELLANEOUS

☐ Asset Discovery

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☐ Search State Unclaimed Property

Check state databases for dormant accounts, uncashed checks, or forgotten insurance policies.

☐ Hire Business Valuation Expert OPTIONAL

If the estate includes an ongoing business, a professional valuation is required for tax and distribution purposes.

☐ Coordinate with Financial Institutions

Provide notice of your fiduciary authority to banks, brokerages, and insurance companies to secure accounts.

 Death Certificate Obtained



 UPLOAD LETTERS (DE-150)

Freeze Accounts

☐ Obtain Date-of-Death Values

Request official DOD statements from every financial institution.

 UPLOAD LETTERS (DE-150)

Get DOD Values

☐ Hire Probate Referee for Real Property OPTIONAL

Court-appointed appraiser must value real estate, business interests, and collectibles.

 UPLOAD COURT APPOINTMENT

Manage Assets

☐ Complete Inventory & Appraisal (DE-160) Check Deadline

List ALL assets with DOD values and attach appraisal reports.

 UPLOAD ALL DOD STATEMENTS

 UPLOAD APPRAISAL REPORTS

☐ File Inventory with Court LOCKED

Submit DE-160 to court and serve copies on all heirs.

☐ International Tax Withholding Review

Identify beneficiary residency and citizenship to determine if 30% withholding applies.

☐ Coordinate with Guardian Ad Litem OPTIONAL LOCKED

Keep guardian informed of all estate actions. Obtain guardian's approval before major decisions affecting minors.

Open Workbook

 UPLOAD MISCELLANEOUS

☐ Creditor Claims

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☐ FIDUCIARY RISK: Statutory Debt Priority

Evaluate claims according to legal priority (e.g., administration costs, taxes, then general debts).

☐ International Fiduciary: W-8BEN/W-8CE Assessment

For non-resident executors or beneficiaries, determine U.S. tax withholding requirements and treaty eligibility.

☐ International Fiduciary: ITIN Acquisition

Identify foreign beneficiaries who require a U.S. Individual Taxpayer Identification Number (ITIN) for distributions.

☐ International Fiduciary: ITIN Acquisition Protocol

Identify foreign beneficiaries without a SSN/ITIN. Coordinate acquisition of U.S. Individual Taxpayer Identification Numbers to avoid maxi withholding on distributions.

☐ Evaluate Estate Solvency

Compare total assets to total liabilities and funeral/admin expenses.

☐ Wait for 4-Month Claim Period LOCKED

Creditors have 4 months from notice publication to file claims.

☐ Review Submitted Claims

Examine each creditor claim for validity, amount, and supporting documentation.

Review Claims

☐ Reject Invalid Claims OPTIONAL

File formal rejections for claims that are incorrect, unsupported, or time-barred.

 UPLOAD DE-174 ALLOWANCE OR REJECTION

☐ Pay Approved Claims LOCKED

Pay valid debts in order of priority (funeral, taxes, secured debts, then unsecured).

☐ File Proof of Notice LOCKED

Submit proof that you properly notified all creditors.

 UPLOAD PROOF OF PUBLICATION

 UPLOAD PROOF OF MAILING

 UPLOAD MISCELLANEOUS

☐ Asset Liquidation

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☐ Obtain Court Approval for Minor Distributions OPTIONAL

Distributions to minors usually require a guardianship or court order to be placed in a blocked account.

☐ Present Letters to All Institutions

Submit certified Letters (DE-150) to every bank, brokerage, and insurance company.

 UPLOAD LETTERS (DE-150)

 Death Certificate Obtained



☐ Transfer Financial Accounts LOCKED

Move stocks, bonds, and cash to estate account or directly to beneficiaries.

☐ Prepare Notice of Proposed Action (DE-165) OPTIONAL

If you have Independent Administration of Estates Act (IAEA) authority, you must notify heirs of your intent to sell real property.

 UPLOAD DE-165

Authorization

☐ Wait for 15-Day Objection Period OPTIONAL LOCKED

Mandatory waiting period after serving Notice of Proposed Action to allow heirs to respond or object.

Track Notice

☐ File Petition to Confirm Sale (DE-260) OPTIONAL

If you do NOT have IAEA authority, or if someone objects, you must petition the court to confirm the sale of real property.

UPLOAD DE-260

File Petition

Obtain Sale Confirmation Order (DE-265) OPTIONAL LOCKED

Receive signed court order confirming the real estate sale and allowing the close of escrow.

UPLOAD DE-265

Obtain Order

Complete Property Sale & Close Escrow OPTIONAL LOCKED

Finalize the sale of real estate, sign closing documents, and receive sale proceeds into the estate account.

UPLOAD FINAL HUD-1/CLOSING STATEMENT

Finalize Sale

File Form 1041 (Fiduciary Income Tax)

Report income, deductions, and credits for a trust or estate that has gross income of \$600 or more in a tax year.

Issue Schedule K-1 to Beneficiaries

Provide beneficiaries with their share of income, deductions, and credits to report on their individual tax returns.

Pay Final Taxes Check Deadline

File final individual 1040, estate 1041, and any estate tax returns.

UPLOAD ALL TAX DOCUMENTS

Prepare Final Accounting LOCKED

Document all income, expenses, and distributions for court review.

Finalize Estate

UPLOAD MISCELLANEOUS

Final Distribution

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Complete liquidation first
View Assets →



ExpectedEstate is not a law firm. We provide recordkeeping tools to help executors document fiduciary actions for attorney review. Use does not create an attorney-client relationship.

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